**THREE RIVERS UNION ELEMENTARY SCHOOL DISTRICT**
**TULARE COUNTY, CALIFORNIA**

**RESOLUTION NO. _____**

**RESOLUTION OF THE BOARD OF TRUSTEES CALLING AN ELECTION TO BE HELD ON NOVEMBER 3, 2026, FOR VOTER APPROVAL OF AN EDUCATION PARCEL TAX, ESTABLISHING SPECIFICATIONS OF THE ELECTION ORDER, AND REQUESTING CONSOLIDATION WITH OTHER ELECTIONS OCCURRING ON NOVEMBER 3, 2026**

## RECITALS

**WHEREAS**, originally established in 1928, the Three Rivers Union Elementary School District (the "District") has created an exceptional and rewarding educational environment that integrates the community's natural resources, history, arts, and human capital as foundations for learning. It educates approximately 100 students from transitional kindergarten through eighth grade at its single elementary school campus in the heart of Three Rivers.

**WHEREAS**, the District is experiencing increasing costs associated with utilities, facility maintenance, grounds maintenance, equipment, safety improvements, and other operational expenses due to inflation and rising service costs; and

**WHEREAS**, State funding provided to school districts has not kept pace with these increasing costs, placing particular financial strain on small rural school districts; and

**WHEREAS**, the District is facing budget cuts due to reduced federal funding from the Department of Education and the fact that funding from the State of California is unstable and only supports a basic education; and

**WHEREAS**, the budget cuts and increasing costs threaten critical support for the District's students; and

**WHEREAS**, maintaining safe and functional school facilities and grounds is essential to sustaining an effective learning environment for students; and

**WHEREAS,** Three Rivers School's upper athletic fields are a valuable community resource and are the only athletic fields within the Three Rivers and available for the community's recreational use during non-school hours; and

**WHEREAS,** Three Rivers School's upper athletic fields require continued maintenance, modernization, and safety improvements in order to remain accessible for use by District students and community members; and

**WHEREAS**, the District's Board of Trustees (the "Board") believes that locally-controlled funding from a local parcel tax measure is needed to stabilize funding for the District,

minimize the impact of budget cuts and cost increases on students, provide for the maintenance of safe and functional school facilities and maintain the District's upper athletic fields as a resource available to the entire Three Rivers community; and

**WHEREAS**, a $120 parcel tax would generate approximately $276,000 annually for eight years; and

**WHEREAS**, the local parcel tax funding described in the measure proposed hereby (the "Measure") would provide for the funding of school operations and maintenance costs (including but not limited to: utilities; facility/grounds upkeep; safety improvements to the District's school facilities; the purchase of instructional materials; technology, development of a community garden); would prohibit the use of parcel tax proceeds for teacher or administrative salaries; and would commit at least twenty-five percent (25%) of the parcel tax collections for improvements to and maintenance of Three Rivers School's upper athletic fields; and

**WHEREAS**, the proposed Measure includes strict fiscal accountability protections to ensure funds are spent as promised, including annual audits and public disclosure of all spending; and

**WHEREAS**, by law, all funds from the proposed parcel tax Measure must stay local for Three Rivers Union Elementary School District only and cannot be taken away by the state or federal governments; and

**WHEREAS**, Section 4 of Article XIIIA of the California Constitution, and sections 50075, *et seq*., 50079, *et seq*., and 53722, *et seq*. of the Government Code, authorize a school district, upon approval of two-thirds of the electorate voting on the Measure, to levy a qualified special tax for specified purposes following notice and public hearing; and

**WHEREAS**, pursuant to Education Code section 5342 and Elections Code section 10402.5, a school district election held on a statewide election date shall be consolidated with the statewide election; and

**WHEREAS**, the Board has conducted a noticed public hearing on the matters authorized by this Resolution and now wishes to request that the County Registrar of Voters call the election and submit the Measure to the voters as provided for herein.

**NOW THEREFORE, THE BOARD OF TRUSTEES OF THE THREE RIVERS UNION ELEMENTARY SCHOOL DISTRICT HEREBY RESOLVES, DETERMINES AND ORDERS AS FOLLOWS:**

**Section 1**. The foregoing recitals are true and correct, and the Board so finds and determines.

**Section 2**. The Board has determined in its best judgment that an election is advisable to submit to the voters of the District the question of whether to levy a parcel tax to support the funding of school operations and maintenance costs (including but not limited to: utilities;

facility/grounds upkeep; safety improvements to the District's school facilities; the purchase of instructional materials; technology) and setting aside twenty-five percent (25%) of the parcel tax collections for improvements to and maintenance of Three Rivers School's upper athletic fields. On that basis the Board hereby requests the County elections officials to call and conduct an election and submit to the voters of the District the question in the form of the Measure described herein and attached hereto.

**Section 3**. This Resolution shall stand as the order of election, pursuant to Education Code section 5320, *et seq*., to the County elections officials to call an election within the boundaries of the District. The Board has the authority for ordering the election pursuant to Education Code sections 5304 and 5322, and Government Code sections 50075, et seq. and 50079, et seq. The date of the election shall be November 3, 2026, and the election shall be consolidated with the other elections occurring on that date. November 3, 2026, is an established election date pursuant to Elections Code section 1000 and is the date of the Statewide gubernatorial election.

**Section 4**. The purpose of the election shall be for the voters in the District to vote on the Measure, containing the question of whether the District shall impose a qualified special tax in the amounts and for the purposes stated therein, assessed against each parcel of taxable real property located wholly or partly in the District, a full copy of which Measure is attached hereto and marked **Exhibit A** and incorporated herein. A parcel of taxable real property shall be defined as any unit of real property located wholly or partly in the District that receives a separate tax bill for *ad valorem* property taxes from the County Tax Collector. The term of the parcel tax described in the Measure, if approved by the voters, shall be eight years from July 1, 2027.

The full text of the Measure shall appear in the ballot pamphlet (voter information guide) in substantially the form attached hereto. As required by Elections Code section 13247, the abbreviated form of the Measure to appear on the ballot is attached hereto as **Exhibit B**.

**Section 5**. Subject to approval by two-thirds of the voters, the parcel tax shall be in the amount of $120 per tax year, assessed against each parcel located wholly or partly in the District, beginning as of July 1, 2027, and continuing for a term of eight years. The parcel tax shall be used only for those purposes set forth in the attached **Exhibit A**. The parcel tax shall be collected by the County Tax Collector, at the same time, in the same manner, and subject to the same penalties as *ad valorem* property taxes collected by the County Tax Collector. Unpaid parcel taxes shall bear interest at the same rate until paid, and be subject to the same penalties, as for unpaid *ad valorem* property taxes.

**Section 6**. The District Superintendent, or authorized designee, is hereby directed to send a certified copy of this Resolution to the County elections officials, the Clerk of the County Board of Supervisors, and the County Superintendent of Schools, so that said officials receive it no later than August 5, 2026.

**Section 7**. The County Superintendent is hereby requested to deliver this Resolution constituting the order of election, to perform applicable duties of the County Superintendent

under Education Code section 5302, and to prepare and execute a formal notice of the election containing the information specified in Education Code section 5361, in substantially the form attached hereto as Exhibit C. The District Superintendent, or authorized designee, on behalf of and as may be requested by County Superintendent of Schools, is authorized to cause all notices required by law in connection herewith to be published and posted, as the case may be.

**Section 8**. Pursuant to Education Code section 5303, the County elections officials are hereby requested to take all steps incidental to the preparation for and the holding of the election in accordance with law and these specifications.

The County elections official is hereby requested to reprint the full ballot text in substantially the form attached hereto as **Exhibit A** in the voter information pamphlet to be distributed to voters pursuant to the Elections Code. In the event the full ballot text will not be reprinted in the voter information pamphlet in its entirety, the County elections official is hereby requested to print, immediately below the impartial analysis of the Measure, in no less than 10-point boldface type, a legend substantially as follows:

> "The above statement is an impartial analysis of Measure __. If you desire a copy of the Measure, please call the Tulare County Registrar of Voters at (559) 839-2100 and a copy will be mailed at no cost to you."

The Board requests that the County elections officials deliver a copy of all published notices to the District Superintendent pursuant to Elections Code section 12113. The District will reimburse the County for election services as required by law.

**Section 9**. The Board of Supervisors of the County is authorized to canvass the returns of the election pursuant to Elections Code section 10411 and, as such, held in all respects as if there were only one election, and using only one form of ballot.

**Section 10**. In accordance with Education Code section 5342 and Elections Code section 10402.5, it is hereby requested that the election to be held hereunder be consolidated by the County elections officials and the County Board of Supervisors for all purposes, with any and all other elections also called to be held on November 3, 2026, insofar as said elections are to be held in the same territory or in territory that is in part the same as the territory of the District.

**Section 11**. The members of the Board, and the Superintendent of the District or their designee (collectively, "Authorized Officers"), are hereby authorized and directed, individually and collectively, to do any and all things and to execute, deliver, and perform any and all agreements and documents that they deem necessary or advisable in order to effectuate the purposes of this Resolution, including, without limitation, to prepare and submit for inclusion in the voter information pamphlet an argument in favor of passage of the Measure, and any rebuttal argument, within the time established by the County elections officials, which shall be considered the official ballot argument of this Board as sponsor of the proposition. All actions heretofore taken by any Authorized Officer and agents of the District that are in conformity with the purposes and intent of this Resolution are hereby ratified, confirmed, and approved in all respects.

**Section 12**. The Authorized Officers are hereby requested and directed, individually and collectively, to provide the following accountability measures pursuant to Government Code sections 50075.1 and 50075.3:

(a) *Specific Purpose*. The proceeds of the parcel tax shall be applied only to the specific purposes identified in the full text of the Measure (attached hereto as **Exhibit A**).

(b) *Separate Fund*. The proceeds of the parcel tax shall be deposited into a fund, which shall be kept separate and apart from other funds of the District.

(c) *Annual Report*. No later than January 1 of each year while the tax is in effect, the District shall prepare and file with the Board a report detailing the amount of funds collected and expended, and the status of any project authorized to be funded by this Measure.

(d) *Set-Aside for the Upper Athletic Fields*. At least twenty-five percent (25%) of the proceeds of the parcel tax shall be set aside exclusively for costs related to improvements, modernization, maintenance, and safety upgrades to the District's upper athletic fields.

**Section 13**. The Board shall provide in each year, pursuant to Government Code section 7902.1 or any successor provision of law, for any increase in the District's appropriations limit as shall be necessary to ensure that proceeds of the parcel tax may be spent for the authorized purposes.

**Section 14**. Any Authorized Officer, or their designee, is hereby authorized and directed to execute any other documents and to perform all acts necessary to place the Measure on the ballot, including making any changes to the text of the Measure described in this Resolution, or to the abbreviated form of the Measure, or to the text of this Resolution, as may be convenient or necessary to comply with the intent of this Resolution, the requirements of elections officials, and requirements of law.

**Section 15**. This Resolution shall take effect from and after its adoption.

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**PASSED AND ADOPTED** by the Three Rivers Union Elementary School District Board of Trustees on this 8th day of July, 2026, by the following vote:

**AYES:** _____

**NOES:** _____

**ABSTAIN:** _____

**ABSENT:** _____

_____
President of the Board of Trustees

ATTESTED TO:

_____
Clerk of the Board of Trustees

## EXHIBIT A

FULL TEXT OF BALLOT MEASURE

**THREE RIVERS UNION ELEMENTARY SCHOOL DISTRICT EDUCATION PROTECTION MEASURE**

Since 1928, the Three Rivers Union Elementary School District (the "District") has created an exceptional and rewarding educational environment that integrates the community's natural resources, history, arts, and human capital as foundations for learning. It educates approximately 100 students from transitional kindergarten through eighth grade at its single elementary school campus in the heart of Three Rivers.
Rising costs for utilities, facilities, safety improvements, and day-to-day operations have outpaced the funding the District receives. The District is facing budget cuts due to reduced federal funding from the Department of Education and unstable funding from the State of California that only supports a basic education. State funding struggles to keep pace with the real costs of running a school, particularly a small rural school like Three Rivers Elementary School.

Increases in costs and decreases in revenues will directly impact the District's ability to improve and maintain the Three Rivers Elementary School and its upper athletic fields. The Three Rivers Union Elementary School District's Board of Trustees believes that funding from a local parcel tax measure is needed to stabilize funding for the District and minimize the impact of cost increases and budget cuts on the District's students.

The parcel tax proposed in this Measure, a tax of $120 per parcel per year, would generate approximately $276,000 annually for eight years and would support the District's operations and maintenance costs including but not limited to: utilities, facility/grounds upkeep, safety improvements, and development of a community garden. At least twenty-five percent (25%) of the proposed parcel tax collections from this measure will be set aside for improvements to and maintenance of Three Rivers School's upper athletic fields, an important resource not only to the District but to the entire Three Rivers community. No proceeds from this parcel tax measure will be used for teacher or administrative salaries.

The Measure requires strict fiscal accountability protections to ensure funds are spent as promised, including annual reports and public disclosure of all spending. By law, all funds from the proposed parcel tax Measure must stay local for the District's use only and cannot be taken away by the state or federal governments. The funds generated by this Measure can only be used for the purposes described in the Measure. Importantly, the Measure commits twenty-five percent (25%) of the revenues generated by the parcel tax to costs related to improvements, modernization, maintenance, and safety upgrades of Three Rivers School's upper athletic field to ensure continued safe access for the District's students and community members.

The proposed parcel tax is temporary, will automatically expire in eight years, and cannot be renewed without voter approval.

## SUMMARY STATEMENT OF THE MEASURE

To offset inflation and limited state funding, shall the Three Rivers Union Elementary School District's measure to levy a $120 parcel tax for eight years (raising approximately $276,000 annually) to fund school operations and maintenance costs including utilities; facility/grounds upkeep/safety improvements, and a community garden, with no money used for teacher or administrative salaries and setting aside at least 25% for improvements to and maintenance of Three Rivers School's upper athletic fields for community use during non-school hours, be adopted??

## PURPOSE OF THE MEASURE

The District proposes to levy and collect the parcel tax annually for eight (8) years as more fully described below under the heading "RATE AND PROCEDURE," and to implement accountability measures in connection with the parcel tax to ensure that funds are used only for the following specific purposes:

To fund school operations and maintenance costs including but not limited to:

> Costs related to the District's facilities and grounds maintenance, utilities and operational costs, costs of safety improvements and infrastructure repairs, the purchase of instructional materials and educational technology, the development of a community garden, and costs related to custodial, maintenance, and operational support expenses.

To provide for improvements, modernization, maintenance, and safety upgrades to Three Rivers School's upper athletic fields including but not limited to:

> Field grading, irrigation, drainage, turf or surface improvements, fencing, accessibility improvements, lighting, and improvements to spectator areas.

## RATE AND PROCEDURE

*Amount of Parcel Tax*. Subject to two-thirds approval of the voters, this local funding measure and its parcel tax will be in effect for eight (8) years, commencing July 1, 2027. The parcel tax will be levied on each parcel of taxable real property (except exempt parcels, as described below), at the rate of $120 per parcel each year.

*Method of Collection*. The parcel tax will be collected by the Tulare County Tax Collector (the "County Tax Collector") at the same time as and along with, and will be subject to the same penalties as, general *ad valorem* taxes collected by said County Tax Collector. The tax and penalty will bear interest at the same rate as the rate for unpaid *ad valorem* property taxes until paid. Any tax levied will become a lien upon the properties against which taxes are assessed and collectible as herein provided.

The Board of Trustees of the District may adopt such additional or supplemental procedures as it deems necessary or convenient for the administration of the parcel tax.

*Definition of Parcel*. A "parcel of taxable real property" is defined as any unit of real property within the District's boundaries that receives a separate tax bill for *ad valorem* property taxes from the County Tax Collector. Units of real property may be treated as separate parcels of taxable real property if a separate parcel number, assessment number, or similar designation is assigned them by the County Assessor.

*Exemptions*. All property that is otherwise exempt from property taxes levied in any year will also be exempt from the parcel tax in such year.

With respect to all general property tax matters within its jurisdiction, the County Tax Collector or other appropriate County tax official shall make all final determinations of tax exemption or relief for any reason, and that decision shall be final and binding. With respect to matters specific to the levy of the special tax, including the application of the definition of "parcel of taxable real property" to any parcel(s) or any other disputed matter specific to the application of the special tax, the decisions of the District shall be final and binding.

**APPROPRIATIONS LIMIT**

To the extent required by the California Constitution and applicable laws, the appropriations limit for the District will be adjusted periodically by the aggregate sum collected by levy of this special tax.

**ACCOUNTABILITY AND COMPLIANCE MEASURES**

In accordance with California Government Code sections 50075.1 and 50075.3, and as additionally proscribed by the Board of Trustees of the District, the following accountability measures shall apply to the parcel tax levied in accordance with this Measure:

(a) The proceeds of the education parcel tax shall be applied only to the specific purposes identified under the heading "PURPOSE OF THE MEASURE," above.

(b) The proceeds of the special tax shall be deposited into a fund, which shall be kept separate and apart from other funds of the District.

(c) No later than January 1 of each year while the parcel tax is in effect, the chief fiscal officer of the District shall prepare and file with the Board of Trustees of the District a report detailing the amount of funds collected and expended, and the status of any project, programs, or purposes identified under the heading "PURPOSE OF THE MEASURE," above.

(d) At least twenty-five percent (25%) of the proceeds of the parcel tax shall be set aside exclusively for costs related to improvements, modernization, maintenance, and safety upgrades to Three Rivers School's upper athletic fields.

## PROTECTION OF FUNDING

Current law forbids any decrease in State or federal funding to the District resulting from the adoption of a parcel tax. However, if any such funding is reduced or affected because of the adoption of this local funding measure, then the Board may reduce the amount of the special taxes levied as necessary in order to restore such State or federal funding and/or maximize the District's fiscal position for the benefit of the District's educational programs. As a result, whether directly or indirectly, no funding from this Measure may be taken away by the State or federal governments.

## SEVERABILITY

The Board of Trustees of the District hereby declares, and the voters by approving this Measure concur, that every section, paragraph, sentence and clause of this Measure has independent value, and the Board of Trustees and the voters would have adopted each provision hereof regardless of every other provision hereof. Upon approval of this Measure by the voters, should any part be found by a court of competent jurisdiction to be invalid for any reason, all remaining parts hereof shall remain in full force and effect to the fullest extent allowed by law.

**EXHIBIT B**

ABBREVIATED FORM OF SPECIAL TAX MEASURE*

**FOR THREE RIVERS UNION ELEMENTARY SCHOOL DISTRICT**

**"**To offset inflation and limited state funding, shall the Three Rivers Union Elementary School District's measure to levy a $120 parcel tax for eight years (raising approximately $276,000 annually) to fund school operations and maintenance costs including utilities; facility/grounds upkeep/safety improvements, and a community garden, with no money used for teacher or administrative salaries and setting aside at least 25% for improvements to and maintenance of Three Rivers School's upper athletic fields for community use during non-school hours, be adopted?"

"Yes No"

*Limited to 75 words pursuant to California Elections Code section 13247

**EXHIBIT C**

FORMAL NOTICE OF PARCEL TAX ELECTION
THREE RIVERS UNION ELEMENTARY SCHOOL DISTRICT

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**NOTICE IS HEREBY GIVEN** to the qualified electors of the Three Rivers Union Elementary School District of Tulare County, California, that in accordance with the provisions of the Education Code of the State of California, an election will be held on November 3, 2026, at which election the following measure shall be submitted to the qualified electors of the District and voted upon:

> **"**To offset inflation and limited state funding, shall the Three Rivers Union Elementary School District's measure to levy a $120 parcel tax for eight years (raising approximately $276,000 annually) to fund school operations and maintenance costs including utilities; facility/grounds upkeep/safety improvements, and a community garden, with no money used for teacher or administrative salaries and setting aside at least 25% for improvements to and maintenance of Three Rivers School's upper athletic fields for community use during non-school hours, be adopted?"

Yes No

All of the purposes enumerated in the foregoing measure shall be united and voted upon as one single measure.

The Tulare County Superintendent of Schools, by this Notice of Election, has called the election pursuant to a Resolution of the Board of Trustees of the Three Rivers Union Elementary School District, adopted July 8, 2026, in accordance with the provisions of Education Code sections 5325 and 5361.

**IN WITNESS WHEREOF**, I have hereunto set my hand this ___ day of _____, 2026.

_____
Tulare County Superintendent of Schools